

25STCV07159 25STCV07159

County: los-angeles

Division: Civil Law and Motion

Department: 311

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Case Number: 25STCV07159 Hearing Date: August 31, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

25STCV07159

GUADALUPE

TERREROS vs AMERICAN HONDA MOTOR CO., INC.

August

31, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANT AMERICAN HONDA MOTOR CO., INC.'S MOTION TO BIFURCATE TRIAL REGARDING
PLAINTIFF'S PUNITIVE DAMAGES CLAIM AND PROHIBIT ANY REFERENCE TO DEFENDANT'S
FINANCIAL CONDITION DURING THE FIRST PHASE OF TRIAL

RULING:

The Court grants the
unopposed Motion. (Civ. Code § 3295, subd. (d).)

Defendant to give notice.

I.

BACKGROUND

On March 13, 2025, GUADALUPE
TERREROS (Plaintiff) filed a Lemon Law Complaint against AMERICAN HONDA MOTOR
CO., INC. (Defendant), alleging Causes of Action under the Song-Beverly
Consumer Warranty Act (Civ. Code §§ 1790-1795.8), along with a Fifth Cause of
Action for Fraudulent Inducement - Concealment.

Plaintiff alleges
purchasing, with warranty provisions, a 2021 Honda Pilot, that Defendant
manufactured, which had defects, including transmission, engine, and electrical.
Plaintiff further alleges that Defendant failed to repair the vehicle within a
reasonable number of attempts and did not promptly replace it or make
restitution.

On July 24, 2026, Defendant
filed the Motion to Bifurcate Trial Regarding Plaintiff's Punitive Damages
Claim, essentially on the ground that Civil Code section 3295, subdivision (d),
applies.

There is no Opposition
filed to this matter.

II.

LEGAL STANDARD

“The purpose behind Civil Code section
3295, which allows bifurcation and preclusion of evidence of a defendant's
wealth and profits during the liability phase of trial, is to minimize
prejudice prior to the jury's determination of a prima facie case of liability
for punitive damages.... However, such evidence is not to be excluded on the
basis of prejudice when the information is relevant to liability.” (Notrica v. State Compensation Ins. Fund

(1999) 70 Cal.App.4th 911, 939.)

Section 3295 states in pertinent part,
the following:

(d) The court shall, on application of any defendant, preclude the admission of evidence of that defendant's profits or financial condition until after the trier of fact returns a verdict for plaintiff awarding actual damages and finds that a defendant is guilty of malice, oppression, or fraud in accordance with Section 3294. Evidence of profit and financial condition shall be admissible only as to the defendant or defendants found to be liable to the plaintiff and to be guilty of malice, oppression, or fraud. Evidence of profit and financial condition shall be presented to the same trier of fact that found for the plaintiff and found one or more defendants guilty of malice, oppression, or fraud.

(Civ. Code § 3295, subd. (d).)

III.

ANALYSIS

Defendant requests that the Court bifurcate trial and try the punitive damages phase only after liability, compensatory damages and punitive damages have been determined, and that the Court prohibit Plaintiff from referencing Defendant's financial condition during the first phase.

As to punitive damages issues, defendants may request exclusion of evidence as to their financial condition, until after any actual damages are awarded, and they are found guilty of malice, oppression, or fraud. (Estate of Young (2008) 160 Cal.App.4th 62, 90.)

This Motion is properly based upon Civil Code section 3295, subdivision (d).

IV.

CONCLUSION

Therefore, the unopposed

Motion is granted.